

****February 22, 2022****

****Sanction for Violation of GDPR****

In February 2022, the National Supervisory Authority completed an investigation into the operator IAMSAT Muntenia SA and found violations of the provisions of Articles 12, 13, and 21 of the General Data Protection Regulation. The operator was sanctioned administratively as follows:

- a fine of 9,892.4 lei, equivalent to 2,000 euros for violating the provisions of Articles 12-13 of the General Data Protection Regulation;
- a fine of 4,946.2 lei, equivalent to 1,000 euros for violating the provisions of Article 12 paragraph (3) and Article 21 of the General Data Protection Regulation.

The investigation was initiated following a complaint made by a data subject who reported that IAMSAT Muntenia SA continued to process their personal data after the termination of their employment contract in 2020. Through a request, this person informed the operator that they did not consent to the use of their email address and opposed the processing of their personal data by IAMSAT Muntenia SA and/or third parties, both natural and legal persons, after the termination of the employment contract.

During the investigation, it was established that IAMSAT Muntenia SA did not provide evidence regarding the prior and complete information of its employees, including the data subject, before starting the processing of these individuals' personal data through the video surveillance means installed at their workplace, which were put into operation from mid-2020, although the operator had the obligation to inform employees according to Articles 12-13 of the General Data Protection Regulation.

Additionally, it was found that IAMSAT Muntenia SA did not address the request of the data subject and did not communicate a response regarding the measures taken following the exercise of the right to object within the legal deadlines, in accordance with the provisions of Article 12 paragraph (3), in relation to Article 21 of the General Data Protection Regulation.

At the same time, during the investigation, the operator was also subjected to two corrective measures, as follows:

- the corrective measure to ensure compliance with the General Data Protection Regulation in the operations of processing personal data, by ensuring complete information for the data subjects, especially the operator's employees, regarding the use of the video surveillance system, in relation to the obligations provided by Articles 12-13 of the General Data Protection Regulation;
- the corrective measure to provide a response to the data subject regarding their request, which should include the measures taken following the exercise of the right to object, in relation to the provisions of Articles 12 and 21 of the General Data Protection Regulation.

****Legal and Communication Directorate****

****N.S.A.P.D.C.P.****